

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 42-004
Amendments to Title 17 of the Chickasaw Nation Code
(Obtaining a Controlled Dangerous Substance)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations on criminal offenses and wishes to amend those rules.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature authorizes and approves that the provisions of this Resolution shall become effective upon publication in the Chickasaw Nation Code.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendments to Title 17, Chapter 4, Sections 17-402.6, 17-402.7, and 17-402.8 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

SECTION 17-402.6

**OBTAINING A CONTROLLED DANGEROUS
SUBSTANCE THROUGH DECEPTIVE MEANS.**

A. It shall be unlawful to obtain Possession of a **Controlled Dangerous Substance or**
a Counterfeit Substance through misrepresentation, fraud, forgery, deception, or subterfuge.

B. Obtaining a Controlled Dangerous Substance through Deceptive Means shall be punishable by a fine not to exceed fifteen thousand dollars (\$15,000), by a term of imprisonment not to exceed three (3) years, or by both such fine and imprisonment.

SECTION 17-402.7

**OBTAINING A CONTROLLED DANGEROUS
SUBSTANCE THROUGH THEFT.**

A. It shall be unlawful to obtain Possession of **a Controlled Dangerous Substance or**
a Counterfeit Substance through larceny, burglary, or theft.

B. Obtaining a Controlled Dangerous Substance through Theft shall be punishable by a fine not to exceed fifteen thousand dollars (\$15,000), by a term of imprisonment not to exceed three (3) years, or by both fine and imprisonment.

SECTION 17-402.8

**OBTAINING A CONTROLLED DANGEROUS
SUBSTANCE THROUGH ROBBERY.**

A. It shall be unlawful to obtain Possession of a **Controlled Dangerous Substance or**
a Counterfeit Substance through robbery or attempted robbery.

B. Obtaining a Controlled Dangerous Substance through Robbery shall be punishable by a fine not less than one thousand dollars (\$1,000) nor more than fifteen thousand dollars (\$15,000), or by imprisonment for a mandatory period not less than one (1) year, nor more than three (3) years, or by such fine and imprisonment.

Executed in regular session of the Chickasaw Tribal Legislature Meeting, at Ada, Oklahoma on May 16, 2025, by a vote of 12 ayes, 0 nays, 0 and abstentions.

Connie Barnes
Chairperson
Chickasaw Tribal Legislature

Shana Tate Carter
Secretary
Chickasaw Tribal Legislature

Concur: Bill Anoatubby
Bill Anoatubby, Governor
The Chickasaw Nation

Date: MAY 16 2025

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Explanation:

This resolution amends the Chickasaw Nation Code to define offenses related to obtaining controlled dangerous substances.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature